# State Government ( Governor and Chief Minister)

1. Which of the following article say that Chief Minister shall be appointed by Governor?
a) Article 161
b) Article 162
c) Article 163
d) Article 164



Show Answer
Answer. d) Article 164

Article 163: Council of Ministers to aid and advise Governor.
Article 164: Chief minister shall be appointed by Governor.
Article 166: Conduct of Business of the Government of the state.
Article 167: Duties of Chief Minister.

2. The provision of "Number of Ministers including Chief Minister of the state shall not be less than 12" includes which constitutional amendment act?
a) 42nd Constitutional Amendment Act 1976
b) 44th Constitutional Amendment Act 1978
c) 86th Constitutional Amendment Act 2002
d) 91st Constitutional Amendment Act 2003

Show Answer
Answer. d) 91st Constitutional Amendment Act 2003.

3. High court Judges hold the office until the age of?
a) 60
b) 62
c) 64
d) 65

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Show Answer
Answer. b) 62

4. **Consider the following statements and select your answer from the codes given below : (UPPSC 2017)**
1. The Governor does not have the power to appoint the judge of a State High court.

2. He is not a part of the Legislature.
3. He has the power to nominate some members of the Legislative Council.
4. He has no judicial powers.
Codes :
a) 1 and 2 are correct
b) 1 and 3 are correct
c) 2 and 4 are correct
d) All are correct

Show Answer
Answer. b) 1 and 3 are correct



## State Assemblies and Chief Minister

1. Consider the following statements (UPSC 2015):
1. The Legislative Council of a State in India can be larger in size than half of the Legislative Assembly of that particular State.
2. The Governor of a State nominates the Chairman of the Legislative Council of that particular State.
Which of the statements given above is/are correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer
Answer. d) Neither 1 nor 2
The maximum strength of the legislative council is fixed at one-third of the total strength of the assembly and the minimum strength is 40.
The chairman of the Legislative council is elected by themselves.
The Chairman of the legislative council's rank will be higher than the chairman of the legislative assembly if both are elected on the same date.

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2. Consider the following statements (UPSC 2016):
1. The Chief Secretary in a State is appointed by the Governor of that State.
2. The Chief Secretary in a State has a fixed tenure.
Which of the statements given above is/are correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer

Answer. d) Neither 1 nor 2
The Chief Secretary in a state is appointed by the Chief Minister and it does not have any fixed tenure.

3. Consider the following statements: (UPSC 2018)
1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the assembly.
2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately.
Which of the statements given above is/are correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer
Answer. a) 1 only

The speaker is elected by the assembly among themselves.
In the following three cases, the speaker of the Legislative assembly vacates the office earlier:
If he/she ceases to be a member of the assembly.
If he/she resigns.
If he/she is removed.
However, whenever the Legislative Assembly is dissolved, the Speaker shall not vacate his/her office immediately.

4. Consider the following statements: (UPSC 2018)
1. No criminal proceedings shall be instituted against the Governor of a State in any court during his term of office.
2. The emoluments and allowances of the Governor of a State shall not be diminished during his term of office.
Which of the statements given above is/are correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

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Show Answer
Answer. c) Both 1 and 2
No criminal proceedings shall be instituted against the Governor of a State in any court during his term of office, even in respect of his personal acts.
Civil proceedings can be started after giving two months' notice.

The emoluments and allowances of the Governor of a State shall not be diminished during his term of office.

5. Which one of the following suggested that the Governor should be an eminent person from outside the State and should be a detached figure without intense political links or should not have taken part in politics in the recent past? (UPSC 2019)
a) First Administrative Reforms Commission (1966)
b) Rajamannar Committee (1969)
c) Sarkaria Commission (1983)
d) National Commission to Review the Working of the Constitution (2000)

Show Answer
Answer. c) Sarkaria Commission (1983)

6. With reference to the Legislative Assembly of a State in India, consider the following statements: (UPSC 2019)
1. The Governor makes a customary address to Members of the House at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on a particular matter, it follows the Lok Sabha rule on that matter.
Which of the statements given above is/are correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer
Answer. c) Both 1 and 2

7. Consider the following statements: (UPSC 2020)
1. According to the Constitution of India a person who is eligible to vote can be made a minister in a State for six months even if he/she is not a member of the Legislature of that State
2. According to the Representation of People Act, 1951, a person convicted of a criminal offense and sentenced to imprisonment for five years is permanently disqualified from contesting an election even after his release from prison.
Which of the statements given above is correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer
Answer. d) Neither 1 nor 2

For MLA, a person should be a minimum of 25 years of age while a person gets eligible to vote at the age of 18. So, statement 1 is false.
According to the Representation of People Act, of 1951, a person convicted of a criminal offense and sentenced to imprisonment for five years is disqualified for a stated time (not permanently).

8. **A political party is recognized as a regional party, If (UPPSC 2014)**
a) It gets 4% votes in the State either in Lok Sabha or the Assembly election.
b) It gets 6% votes in the State either in Lok Sabha or the Assembly election.
c) It gets 8% votes in the State either in Lok Sabha or the Assembly election.
d) None of the above

Answer. b) It gets 6% votes in the State either in Lok Sabha or the Assembly election.

9. **Identify the correct chronological order in which the following States were created in India from the codes given below:**
1. Andhra Pradesh
2. Himachal Pradesh
3. Haryana
4. Sikkim
Codes:
a) 1, 2, 3, 4
b) 1, 3, 2, 4
c) 4, 3, 1, 2
d) 3, 4, 1, 2

Answer. b) 1, 3, 2, 4
- Andhra Pradesh( 1956)
- Himachal Pradesh: 1966
- Haryana: 1971
- Sikkim: 1975

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10. **Under which one of the following articles of the Indian constitution, the provision for the creation or abolition of legislative councils in the state are made?**
a) Article 168
b) Article 169
c) Article 170
d) Article 171

Answer. b) Article 169; At present, Uttar Pradesh, Bihar, Maharashtra, Gujarat, Andhra Pradesh, Telangana, Karnataka,

11. **The total number of members of the legislative council of Uttar Pradesh is: (UPPSC 2013)**
a) 105
b) 106
c) 107
d) 100

Answer. d) 100

12. **The total number of members of the legislative assembly of Uttar Pradesh is: (UPPSC 2013)**
a) 403
b) 406
c) 407
d) 500

Answer. a) 403

## Election Commission, CAG, and Panchayati Raj

1. Which article in the Indian Constitution is related to the establishment of the Election Commission of India? (BPSC 2020)
a) Article 324
b) Article 148
c) Article 342
d) Article 325
e) None of the above/More than one of the above

Show Answer
Answer. a) Article 324.

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Article 324: The election of Lok Sabha and State Assemblies shall be conducted by the Election Commission of India. The election commission of India has three members body with one Chief Election Commissioners and two election commissioners.
Article 148: Comptroller and Auditor General of India.
Article 342: Schedule tribe
Article 325: Electoral roll

2. Which Article gives the list of 29 functions to be performed by the Panchayati Raj Institutions? (BPSC 2020)
a) Articles 243(H)

b) Articles 243(E)
c) Articles 243(F)
d) Articles 243(G)
e) None of the above/More than one of the above

Show Answer
Answer. d) Article 243(G)
Article 243(G) specifies the 29 functions to be performed by Panchayati Raj.
Article 243(G) specifies the 18 functions to be performed by Municipalities.
Articles 243 to 243 O deal with Panchayat.
Articles 243P to 243 ZG deal with Municipalities.
Co-operative Societies: 243 ZH to ZT.

3. The legislative origins of the 73rd Constitutional Amendment Act can be traced back to which Constitutional Amendment Bill? (BPSC 2020)
a) 61st Constitutional Amendment Bill
b) 62nd Constitutional Amendment Bill
c) 63rd Constitutional Amendment Bill
d) 64th Constitutional Amendment Bill
e) None of the above/More than one of the above

Show Answer
Answer. e) None of the above.

61st CAA 1989: Voting age reduced from 21 to 18.
62nd CAA 1989: Extended the reservation of seats for SCs and STs in Lok Sabha and state assemblies.
63rd CAA 1989: Punjab was brought under the emergency provision.
64th CAA: President rule in Punjab.

4. Which one of the following is not the characteristic of decentralization? (BPSC 2020)
a) Autonomy
b) People's participation
c) To install non-confidence among local communities
d) To empower local communities
e) None of the above/More than one of the above

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Show Answer
Answer. c) To install non-confidence among local communities

5. In the areas covered under the Panchayat (Extension to the Scheduled Areas) Act, 1996, what is the role/power of Gram Sabha? (UPSC 2012)
1. Gram Sabha has the power to prevent the alienation of land in the Scheduled Areas.
2. Gram Sabha has the ownership of minor forest produce.

3. Recommendation of Gram Sabha is required for granting prospecting license or mining lease for any mineral in the Scheduled Areas.
Which of the statements given above is/are correct?
a) 1 only
b) 1 and 2 only
c) 2 and 3 only
d) 1, 2 and 3

Show Answer
Answer. d) 1,,2 and 3

Gram Sabha is the foundation of the Panchayati Raj System. Gram Sabha is comprised of all registered voters within the panchayat areas.
The following are the main features of the PESA (Panchayat Extension to the Scheduled Area) act 1996:
Gram Sabha has the power to safeguard and preserve tradition, customs, cultural identity, and community resources.
Gram Sabha should be consulted before making any land acquisition in scheduled areas.
Recommendation of Gram Sabha is required for granting a prospecting license or mining lease for any mineral in the Scheduled Areas.

6. In India, other than ensuring that public funds are used efficiently and for their intended purpose, what is the importance of the office of the Comptroller and Auditor General (CAG)?
1. CAG exercises exchequer control on behalf of the Parliament when the President of India declares a national emergency/financial emergency.
2. CAG reports on the execution of projects or programs by the ministries are discussed by the Public Accounts Committee.
3. Information from CAG reports can be used by investigating agencies to press charges against those who have violated the law while managing public finances.
4. While dealing with the audit and accounting of government companies, CAG has certain judicial powers for prosecuting those who violate the law.
Which of the statements given above is/are correct?
a) 1, 2, and 4 only
b) 2 only
c) 2 and 3 only
d) 1, 2, 3 and 4

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Show Answer
Answer. c) 2 and 3

6. Which of the following was the first state to establish Panchayati Raj?
a) Uttar Pradesh
b) Tamil Nadu
c) Andhra Pradesh
d) Rajasthan

Show Answer
Answer. d) Rajasthan
Panchayati Raj was established in the Nagpur District of Rajasthan on 2 October 1959.
Andhra Pradesh was the second state to adopt the Panchayati Raj.

7. Which of the following is the first Committee established for the establishment of the Panchayati Raj institution?
a) Balwant Rai Mehta Committee
b) G V KK Rao Committee
c) L M Singhvi Committee
d) Thungon Committee

Show Answer
Answer. a) Balwant Rai Mehta Committee

1988: Thungon Committee
1986: LM Singhvi Committee
1985: GVK Rao Committee
1977: Ashok Mehta Committee
1957: Balwant Rai Mehta Committee

8. The Constitution (Seventy-Third Amendment) Act. 1992, which aims at promoting the Panchayati Raj Institutions in the country, provides for which the following? (UPSC 2011)
1. Constitution of District Planning Committees.
2. State Election Commissions to conduct all panchayat elections.
3. Establishment of State Finance Commissions.
Select the correct answer using the codes given below:
a) 1 only
b) 1 and 2 only
c) 2 and 3 only
d) 1, 2 and 3

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Show Answer
Answer. d) 1,2,3

The following are the main features of the 73rd Constitutional Amendment Act 1992:
73rd constitutional amendment act has been enacted to provide the constitutional status and protection of the Panchayati Raj institution.
New part IX to the constitution of India was added and provisions were made from Article 243 to 243 O.
Article 243 G contains 29 functional items for Panchayat raj.
It was implemented to give the practical shape of Article 40 of DPSP.
Gram Sabha is the foundation of Panchayati Raj and it is comprised of all electoral rolls of the areas.

There would be three tiers system i.e. Village, intermediate, and district levels.
All the members of Panchayats at the village, intermediate, and district levels shall be elected directly by the people.
At least 33 % of reservations for Women will be provided.
The state election commission, District Planning Committee, and State Finance Commission should be constituted.
The district planning committee should consolidate the plans prepared by Panchayats and municipalities.



9. With reference to the Finance Commission of India, which of the following statements is correct? (UPSC 2011)
a) It encourages the inflow of foreign capital for infrastructure development
b) It facilitates the proper distribution of finances among the Public Sector Undertakings
c) It ensures transparency in financial administration
d) None of the statements (a), (b), and (c) given above is correct in this context

Show Answer
Answer. d) None of the statements (a), (b), and (c) given above is correct in this context

Article 280 empowers the establishment Finance commission, a quasi-judicial body. The following are major works of the Finance Commission:
Distribution of taxes between centers and states.
To make provisions for grants-in-aid to the states.
Appropriate provision to supplement the resource to panchayat and municipalities.
CAG works in the field of Financial Administration, so statement (c ) is incorrect.

10. Consider the following statements: In India, a Metropolitan Planning Committee
1. Is constituted under the provisions of the constitution of India.
2. Prepares the draft development plans for the metropolitan area.
3. Has the sole responsibility for implementing Government-sponsored schemes in the metropolitan area.
Which of the statements given above is/are correct?
a) 1 and 2 only
b) 2 only
c) 1 and 3 only
d) 1, 2 and 3

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Show Answer
Answer. d) 1,2, and 3

Article 243ZE provides the constitution of the Metropolitan Planning Committee in every metropolitan area, so statement 1 is correct.
2/3rd of members are elected.
The main work of the Metropolitan Planning Committee is to make development planning and coordination for the metropolitan areas.

11. Consider the following statements: Attorney General of India can (UPSC 2013)
1. take part in the proceedings of the Lok Sabha
2. be a member of a committee of the Lok Sabha
3. speak in the Lok Sabha
4. vote in the Lok Sabha
Which of the statements given above is/are correct?
a) 1 only
b) 2 and 4
c) 1, 2 and 3
d) 1 and 3 only

Show Answer
Answer. c) 1,2 and 3

The Attorney general is appointed by the president. A person can be appointed as an Attorney general who is qualified to Supreme court judge.
Article 76: Attorney General of India
Article 105: Power, Privilege, and Immunities of Attorney General

12. Which of the following bodies does not/do not find mentioned in the Constitution? (UPSC 2013)
1. National Development Council
2. Planning Commission
3. Zonal Councils
Select the correct answer using the codes given below:
a) 1 and 2 only
b) 2 only
c) 1 and 3 only
d) 1, 2 and 3

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Show Answer
Answer. d) 1,2, and 3

Azonal council is a statutory body, not a constitutional body. They are established under the State Reorganization Act of 1956. The zonal council comes under the Ministry of Home Affairs.
The planning commission now NITI Aayog is the extra-constitutional body.

13. The Government enacted, the Panchayat Extension to Scheduled Areas (PESA) Act in 1996. Which one of the following is not identified as its objective? (UPSC 2013)

a) To provide self-governance
b) To recognize traditional rights
c) To create autonomous regions in tribal areas
d) To free tribal people from exploitation

Show Answer
Answer. c) To create autonomous regions in tribal areas

14. Under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, who shall be the authority to initiate the process for determining the nature and extent of individual or community forest rights or both? (UPSC 2015)
a) State Forest Department
b) District Collector/Deputy Commissioner
c) Tahsildar/Block Development Officer/Mandal Revenue Officer
d) Gram Sabha

Show Answer
Answer. d) Gram Sabha

15. The fundamental object of the Panchayati Raj system is to ensure which among the following? (UPSC 2015)
1. People's participation in the development
2. Political accountability
3. Democratic decentralization
4. Financial mobilization
Select the correct answer using the code given below.
a) 1, 2, and 3 only
b) 2 and 4 only
c) 1 and 3 only
d) 1, 2, 3 and 4

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Show Answer
Answer. c) 1 and 3

The fundamental object of the Panchayati Raj system is to ensure the people’s participation in development and democratic decentralization.

16. Consider the following statements: (UPSC 2016)
1. The minimum age prescribed for any person to be a member of Panchayat is 25 years.
2. A Panchayat reconstituted after premature dissolution continues only for the remainder period.

Which of the statements given above is/are correct?
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer
Answer. b) 2 only

The following are some important points:
There is no minimum age for qualification of Judges of High courts and supreme court.
The minimum age for contesting the Panchayat election is 21 years. So statement 1 is not true.
Member of Rajya Sabha or State council: Minimum age 30 years.
Member of Lok Sabha and State Assembly: Minimum age 25 years.
President, Vice President, or Governor Post: Minimum 35 years

17. With reference to the 'Gram Nyayalaya Act', which of the following statements is/are correct? (UPSC 2016)
1. As per the Act, Gram Nyayalayas can hear only civil cases and not criminal cases.
2. The Act allows local social activists as mediators/reconcilers.
Select the correct answer using the code given below.
a) 1 only
b) 2 only
c) Both 1 and 2
d) Neither 1 nor 2

Show Answer
Answer. b) 2 only

Gram Nyayalaya Act 2008 was enacted to fulfill the provision of Article 39 A for the following purposes:
It aims to provide a grassroots level of justice at their doorsteps.
Access to justice by poor and disadvantaged groups.
The Head of gram Nyayalaya will be Nyayadhikari and it shall be appointed by State Government in consultation with the high court.
Gram Nyayalaya will be established for every Panchayat.
It is a form of mobile court and shall exercise the power of both criminal and civil courts.
The Act allows local social activists as mediators/reconcilers.

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18. Consider the following statements: (UPSC 2017)
1. The Election Commission of India is a five-member body.
2. Union Ministry of Home Affairs decides the election schedule for the conduct of both general elections and bye-elections.
3. Election Commission resolves the disputes relating to splits/mergers of recognized political parties.

Which of the statements given above is/are correct?
a) 1 and 2 only
b) 2 only
c) 2 and 3 only
d) 3 only

Show Answer
Answer. d) 3 only

Article 324 provides the composition of the Election commission of India.
The election commission of India is a three members boy comprised of the Chief election commission and two other election commissions. So, the statement is not true,
The election commission decides the election schedule for the conduct of both general elections and bye-elections. So, statement 2 is also incorrect.

19. Local self-government can be best explained as an exercise (UPSC 2017)
a) Federalism
b) Democratic decentralization
c) Administrative delegation
d) Direct democracy

Show Answer
Answer. b) Democratic decentralization

20. Arrange the following Committees on Panchayati Raj in chronological order and select the correct answer from the codes given below:
1. Rao Committee
2. L.M. Singhvi Committee
3. B.R. Mehta Committee
4. Ashok Mehta Committee
Codes:
a) 2,3,1,4
b) 1,3,4,2
c) 3,4,1,2
d) 4,3,2,1

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Show Answer
Answer. c) 3,4,1,2
1988: Thungon Committee
1986: LM Singhvi Committee
1985: GVK Rao Committee

1977: Ashok Mehta Committee
1957: Balwant Rai Mehta Committee

21. Match List-I with List-II and select the correct answer from the code given in the lists. (UPPSC 2022)

| List-I (Committee) | List-II-II(Year of appointment) |
|---|---|
| A. Balwant Rai Mehta Committee | 1. 1957 |
| B. Ashok Mehta Committee | 2. 1977 |
| C. L.M Singhvi Committee | 3. 1986 |
| D. P.K. Thungun Committee | 4. 1988 |

Codes:

| | A | B | C | D |
|---|---|---|---|---|
| a) | 3 | 4 | 2 | 1 |
| b) | 1 | 2 | 3 | 4 |
| c) | 2 | 3 | 1 | 4 |
| d) | 4 | 1 | 2 | 3 |

Show Answer

Answer. b) 1 2 3 4

22. **Read the following and select the correct answer from the code given below: (UPPSC 2015)**
Assertion(A): The national Human right commission(NHRC) is to be headed by a person who has been a former chief justice of India.
Reason (R): The chairperson of NHRC hold office for a term of 5 years or till he attains the age of 70 years, whichever is earlier.
a) A is true, but R is false.
b) A is false but R is true.
c) Both A and R are true.
d) Both A and R are false

Show Answer
Answer. a) A is true, but R is false.
National Human right commission is a statutory organization and has five full-time members and seven deemed members. The chief justice of India and Supreme court judges can be the Head of NHRC. Terms are 3 years or upto 70 years;

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23. **Study the following statements and select the correct answer from the code given below:**
Assertion (A): The state election commission is a constitutional authority.
Reason ( R): Elections to rural local bodies are overseen by the Election Commission of India.
Codes:
a) Both A and R are true and R is the correct explanation of A.
b) Both A and R are true and R is not the correct explanation of A.
c) A is false and R is true.
d) A is true and R is false.

Show Answer

Answer. d) A is true and R is false.
Elections to rural local bodies are overseen by the state Election Commission

24. **The Election Commissioner can be removed by the (UPPSC 2014)**
a) Chief Election Commissioner
b) Prime Minister
c) President on the recommendation of the Chief Election Commissioner
d) Chief Justice of India.
Show Answer

Answer. c) President on the recommendation of the Chief Election Commissioner

25. **Which one of the following Committees is not connected with Panchayati Raj Institution?**
a) P.V.N. Rao Committee
b) L.M. Singhvi Committee
c) Ashok Mehta Committee
d) Balwant Rai Mehta Committee

Answer. a) P.V.N. Rao Committee; PVN Rao committee for the balance of payment crisis. GVK Rao Committee ( 1985) is related to Panchayati raj Institution.

26. **Which among the following Panchayats are included in the District Plan in U.P.? (UPPSC 2016)**
I. Nagar Panchayat
II. Gram Panchayat
III. Kshetra Panchayat
Select the correct answer from the codes given below:
Codes:
a) I only
b) I and III only
c) II and III only
d) I, II, and III all

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Answer. d) I, II, and III all

27. **The State Finance Commission is a (UPPSC 2016)**
a) Legal body
b) Non-statutory body
c) Constitutional body
d) None of the above

Answer. c) Constitutional body

28. **Under which Article of the Indian Constitution, there is a provision for the Election Commission? (UPPSC 2016)**
a) Article 320
b) Article 322
c) Article 324
d) Article 326

Answer. c) Article 324

29. **Which part of the Constitution, has-the provisions for Panchayati Raj System? (UPPSC 2016)**
a) IX
b) VI
c) III
d) IV (a)

Answer. a) IX

30. **The Panchayati Raj System was adopted (UPPSC 2016)**
a) make people aware of politics.
b) decentralize the power of democracy.
c) educate the peasants.
d) None of the above

Answer. b) decentralize the power of democracy.

31. **Who is considered the "Architect of Panchayati Raj" in India? (UPPSC 2016)**
a) Acharya Narendra Deo
b) G.V.K. Rao
c) B.R. Mehta
d) L.M. Singhavi

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Answer. c) B.R. Mehta;
Balwant Rai Mehta is considered the "Architect of Panchayati Raj" in India?
24 April: National Panchayati Raj Day
Rajasthan was the first state to adopt Panchayati Raj
Committee related to Panchayati Raj:

- 1957: BR Mehta Committee
- 1977: Ashok Mehta Committee
- 1983: Hanumantha Rao Committee
- 1985: G.V. K Rao Committee
- 1986: L.M Singhvi Committee
- 1989: Thungan Committee

32. **Reservation of seats in Panchayat elections for Scheduled Castes shall not apply to the State of (UPPSC 2016)**

a) Uttar Pradesh
b) Assam
c) Arunachal Pradesh
d) Haryana

Answer. c) Arunachal Pradesh;
Arunachal Pradesh is fully occupied by tribal populations.
About Panchayati Raj:

- Part IX of the constitution.
- Schedule: XI
- Article: 243-243O
- 73rd Constitution amendment 1992
- For Political decentralization

33. **Who among the following is authorized to make provisions with respect to the composition of Panchayats? (UPPSC 2016)**

a) Governor of State
b) Legislature of State
c) Parliament of India
d) President of India

Answer. b) Legislature of State

34. **Match List - I with List - Il and select the correct answer using the codes given below the lists (UPPSC 2016)**

| List—I (Institution) | List-II (Articles) |
|---|---|
| A. Comptroller and Auditor General of India | 1. Article 315 |
| B. Finance Commission | 2. Article 280 |
| C. Administrative Tribunal | 3. Article 148 |
| D. Union Public Service Commission | 4. Article 323(A) |

Codes:

| A | B | C | D |
|---|---|---|---|

a) 3 2 4 1
b) 3 4 2 1
c) 1 2 4 3
d) 4 1 3 2

Answer. a) 3 2 4 1

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35. **Who among the following holds his/her office during the pleasure of the President? (UPPSC 2016)**
a) Comptroller and Auditor General of India
b) Chief Election Commissioner
c) Speaker of Lok Sabha
d) Attorney General of India

Answer. d) Attorney General of India

36. National Panchayati Raj Day in India is celebrated on (UPPSC 2019)
a) 26 January
b) 2 October
c) 21 April
d) 24 April

Answer. d) 24 April

37. How many items are there in the 11th schedule of the Constitution of India? (UPPSC 2019)
a) 22
b) 24
c) 29
d) 32

Answer. c) 29

38. **Consider the following statements in the context of the Attorney General of India. (UPPSC 2020)**
1. The president shall appoint a person who is qualified to be appointed a judge of the Supreme Court.
2. The Attorney General shall receive such remuneration as the Parliament may determine.
Select the correct answer using the codes given below:
Codes:
a) Only 1 is correct
b) Only 2 are correct
c) Both 1 and 2 are correct
d) Neither 1 nor 2 is correct.

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Answer. a) Only 1 is correct; Articles 76 and 78 deal with the Attorney General of India.
The following are the main features:
- Attorney General is the highest law officer in India.
- President should appoint the Attorney General who should be qualified as a judge of the Supreme court(five-year high court judge or 10 years of advocate services in the high court).
- He/she holds the office with the pleasure of the president.
- The constitution does not fix the remuneration of the attorney general.
- He/she enjoys the privilege and immunities that are available to MP.

- He can take part in Parliament but without the right to vote.
- he should not be debarred for private practices.

## Constitutional Amendments at Glance

1. In which constitutional amendment, the ninth Schedule was added to protect the land reform law from Judicial Review?

a) 1st
b) 8th
c) 9th
d) 10th

Show Answer

Answer. a; 1st Constitutional amendment (1951) added the ninth schedule
8th CAA(1960): Reservation for SCs/STs, Anglo Indian was extended up to 1970.
9th CAA(1960): Cession of Indian Berubari territory to Pakistan under Indo-Pakistan Agreement(1958).
10th CAA(1961): Dadra and Nagar Haveli in Indian Union.

2. In which constitutional amendment act, four categories( Part A, B, C, D) of states were abolished and recognized 14 states and 6 Union?

a) 7th
b) 8th
c) 9th
d) 10th

Show Answer

Answer. a;
7th CAA 1956.

3. In which constitutional amendment act, empower the establishment of a common high court for two or more states?

a) 7th
b) 8th
c) 9th
d) 10th

Show Answer

Answer. a;
7th CAA 1956.

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4. Match the following;

List-I (Constitutional Amendment)

I. 10th CAA (1961)

II. 12th CAA (1962)

III. 13th CAA (1962)

IV. 14th CAA (1962)

List-II(Provisions)

A. Incorporation of Puducherry in the Indian Union

B. State status of Nagaland and special provision

C. Incorporation of Goa, Daman, and Diu in the Indian Union

D. Incorporation of Dadra and Nagar Haveli in the Indian Union

| | A | B | C | D |
|---|---|---|---|---|
| a) | I | II | III | IV |
| b) | II | I | IV | III |
| c) | IV | III | II | I |
| d) | IV | I | II | III |

Show Answer

Answer. c;

5. Which of the following Constitutional Amendment Acts abolished the system of Election Tribunals and vested the power to hear election petitions in the High Court?

a) 19th CAA (1966)

b) 21st CAA(1967)

c) 22nd CAA(1969)

d) 23rd CAA (1969)

Show Answer

Answer. a;

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19th CAA(1966): Abolished the system of election Tribunals.

21st CAA(1967): Sindhi as the 15th Language in the eighth.

22nd CAA(1969): Autonomous status of Meghalaya within Assam.

23rd CAA(1969): Extension of SC/ST reservation in Lok Sabha and state assemblies up to 1980.

6. Which of the following Constitutional Amendment Acts made it compulsory for the president to give his assent to a constitutional amendment bill?

a) 24th CAA(1971)
b) 26th CAA( 1971)
c) 27th CAA(1972)
d) 28th CAA(1972)

Show Answer
Answer. a. 24th CAA(1971),
It made it compulsory for the president to give his assent to a constitutional amendment bill.
Affirmed the power of parliament to amend any part of the constitution.

7. 36th Constitutional amendment Act(1975) is related to;
a) Termination of the protectorate status of Sikkim.
b) Made Sikkim a full-fledged state of the Indian state
c) Disputes relating to the president, vice president, prime minister, and speaker beyond the scope of the judiciary.
d) Provision related to Exclusive economic zone( EEZ)
Show Answer

Answer. b;
Termination of the protectorate status of Sikkim (35th CAA 1974)
Made Sikkim a full-fledged state of Indian state ( 36th CAA 1975)
Disputes relating to the president, vice president, prime minister, and speaker are beyond the scope of the judiciary. (39th CAA 1975)
Provision related to Exclusive economic zone ( EEZ) (40th CAA 1976)

8. Which constitutional amendment act raised the retirement age of the State Public Service commission and joint public service commission from 60 to 62
a) 41st CAA (1976)
b) 42nd CAA (1976)
c) 43rd CAA (1977)
d) 44th CAA (1978)

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Show Answer
Answer. a. 41st CAA
42nd CAA 1976( new words Socialist, Secular, integrity) in the preamble. Fundamental duties added.
43rd CAA (1977): restore the jurisdiction of the Supreme Court and high court.
44th CAA (1978): Deleted the right to property of fundamental rights. They made provision that articles 20 and 21 cannot be suspended during a national emergency.

9. Anti-defection law was made in which constitutional amendment act?
a) 52nd CAA 1985
b) 61st CAA 1989
c) 71st CAA 1992
d) 73rd CAA 1992

Show Answer
Answer. a. 52nd 1985, 10th Schedule added
61st 1989: Voting right; reduced the voting age from 21 years to 18 years.
71st 1992: Konkani, Manipuri, and Nepali languages in eight schedules
73rd 1992: Part IX and Schedule 11 were added relating to Panchayati Raj.
74th 1992: Part IX-A and Schedule 12 were added relating to Municipalities.

10. Which constitutional act made elementary education a fundamental right?
a) 86th CAA 2002
b) 87th CAA 2003
c) 91st CAA 2003
d) 92nd CAA 2003

Show Answer
Answer. a; 86th CAA 2002, made changes in Articles 21 A, 51 A, and Article 45 for elementary education.
87th CAA 2003; readjustment of constituencies based on 2001 census.
91st CAA 2003; the total number of ministers including the prime minister shall not exceed 15 % of the total strength of Lok Sabha and shall not be less than 12, and the same is for the state assembly.
92nd CAA 2003; Bodo, Dogri, Mathili, and Santhali are included in the 8th Schedule, total schedule languages became 22.

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11. Which of the following constitutional amendment is related to Goods and Services Tax(GST):
a) 100th CAA 2015
b) 101st CAA 2016
c) 102nd CAA 2018
d) 103rd CAA 2019

Show Answer
Answer. b, 101st CAA 2016

100th CAA 2015: Boundary agreement between India and Pakistan
101st CAA 2016: GST
102nd CAA 2018: Constitutional status for National Commission for Backward Classes( NCBC)
103rd CAA 2019: 10 % reservation for Economically weaker sections.
104th CAA 2020: removed reservation seats for the Anglo-Indian community.

12. Consider the following statements regarding Article 368 of the Constitutional amendment bill;
1. Constitutional amendment bills can be initiated only in Lokasabha; not in Rajya Sabha.
2. The bill can be introduced either by the minister or by a private member.
3. The bill does not require prior permission from President.
4. The bill must be passed in each house with a special majority means 50 % of the total membership of the house and 2/3rd of the member of the house present and voting.
Which of the above statements is correct;
a) 1 and 2 only
b) 1,2, and 3 only
c) 2,3, and 4 only
d) 1,2,3, and 4 only

Show Answer
Answer: c;

13 . Constitution can be amended in threeway;
1. By the simple majority of parliament.
2. By the special majority of parliament.
3. By the special majority of parliament and ratification of half of the state legislative.
Which of the above amendments comes under article 368.
a) 1and 2 only
b) 1 and 3 only
c) 2 and 3 only
d) 1, 2, and 3 only

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Show Answer
Answer: c.

14. 1. Procedure laid down for amendment of the Indian constitution is based on which constitution of the world?
a) the UK
b) the USA
c) Synthesis of UK and USA

d) Japan

Show Answer
Answer. c) Synthesis of UK and USA.
Indian constitution is neither rigid like USA's constitution nor flexible like Uk's constitution. It is a synthesis of both constitutions.

15. Article 368, amending procedure of constitution is mentioned in which part of the Indian constitution?
a) Part X
b) Part VI
c) Part IX
d) Part XX

Show Answer
Answer. d) Part XX

16. An amendment of the constitution can be initiated only in?
a) Rajya Sabha Only
b) Lok Sabha Only
c) Either Rajya Sabha or Lok Sabha
d) Either Parliament or State Legislatures

Show Answer
Answer. c) Either House of Parliament

17. Which of the following statement is false regarding the Constitutional Amendment bill?
a) It can be introduced by the minister.
b) It can be introduced by a private member.
c) Introduction of the constitutional amendment bill does not require prior permission from the president.
d) There is a provision for holding a joint sitting of the two houses in case of disagreement.

Show Answer
Answer. d) There is a provision for holding a joint sitting of the two houses in case of disagreement.

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18. Which of the following amendment require only a simple majority of parliament?
a) Election of the president.
b) Emoluments, allowances, and privileges of the president.
c) Executive power of the Union and the states.
d) Representation of states in Parliament.

Show Answer
Answer. b) Emoluments, allowances, and privileges of the president.
The special majority of parliament and the consent of states are required to change the federal structure of the constitution. Some of the federal structures are:
1. Election of the president
2. Executive power of the union and the states.
3. Power of Supreme court and high court.
4. Distribution of legislative power of Union and states.
5. Seventh Schedule
6. State's representation in parliament
7. Article 368

19. Which of the following statements regarding the 74th Amendment to the Constitution of India are correct? (BEO 2020)

1. It provides the insertion of a new Schedule to the constitution.

2. It restructures the working of Municipalities

3. It provides the reservation of seats for women in Municipalities

4. It is applicable only to some specified states.

Select the correct answer from the codes given below:

Codes:

a) 1,2, and 3 are correct

b) 1,2, and 4 are correct

c) 1,3, and 4 are correct

d) 2,3, and 4 are correct

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Show Answer

Answer. a) 1,2, and 3 are correct

20. Match List I with List II and select the correct answer from the code given below : (UPPSC 2017)

List I

A. Curtailment of the power of judicial review

B. Abolition of Right to the property as a fundamental right

C. Lowering the voting age from 21 to 18

D. Addition of the word secular in the preamble

List II

1. 61st Amendment

2. 42nd Amendment

3. 38th Amendment

4. 44th Amendment

Codes :

A B C D

a) 1 2 4 3

b) 2 4 1 3

c) 3 4 1 2

d) 4 1 3 2

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Show Answer

Answer. c) 3 4 1 2

21. **By which constitutional amendment act the number of Central Ministers has been limited to 15% of the total number of members of the Lok Sabha? (UPPSC 2015)**

a) 91st Amendment
b) 92nd Amendment
c) 90th Amendment
d) None of the above

Show Answer

Answer. a) 91st Amendment;

- Article: 72 also prescribes the number of Central Ministers has been limited to 15% of the total number of members of the Lok Sabha

## Emergency provisions

1. Which of the following article empower for "National Emergency"?

a) Article 352
b) Article 356
c) Article 360
d) Article 363

Show Answer

Answer. a) Article 352: National Emergency.
Article 352: National Emergency.
Article 356: President's rule.
Article 360: Financial Emergency.

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2. Which of the following is not the basis for the proclamation of "National Emergency"?

a) War
b) External Aggression
c) Armed rebellion
d) Internal disturbance

Show Answer

Answer. d) Internal disturbance

The internal disturbance is not the basis for the proclamation of “National Emergency”, it was omitted in the 44th Constitutional amendment act(1978).

3. Which of the following constitutional amendment act made the declaration of National Emergency immune from Judicial review?
a) 38th Amendment Act (1975)
b) 42nd Amendment Act (1976)
c) 44th Amendment Act (1978)
d) 101st Amendment Act (2016)

Show Answer
Answer. a) 38th Amendment Act (1975)

4. Which of the following judgment held that the proclamation of national emergency can be challenged in a court on the ground of malafide or others.
a) Champakam Dorairanjan case (1951)
b) Golaknath Case ( 1967)
c) Kesavananda Bharti case (1973)
d) Minerva Mills case (1980)

Show Answer
Answer. d) Minerva Mills case(1980)
Champakam Dorairanjan case (1951):
DPSP is a subsidiary of Fundamental Rights.
Fundamental rights can be amended by the constitutional amendment act.

5. Proclamation of emergency must be approved by both the houses of parliament within?
a) 1 month
b) 2 months
c) 6 months
d) 1 year

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Show Answer
Answer. a) 1 month
Originally, it was 2 months but reduced to 1 month by the 44th amendment act of 1978.
Once approved, it will be valid for six months and can be extended to an infinite period with the approval of parliament every six months.

6. Which type of Majority is needed to pass the emergency resolution in Parliament?
a) Simple Majority
b) Special Majority [ majority of total membership and 2/3rd of the members of the present and voting;
c) Special majority and approval by half of the states’ assembly
d) Absolute majority

Show Answer

Answer. b) Special Majority [ majority of total membership and 2/3rd of the members of the present and voting;

Earlier, only a simple majority was needed. A special majority provision was added by the 44th amendment act of 1978. It was also added in this amendment act that the president must revoke the emergency if the Lok Sabha disapproves.

7. Article 358 deals with?
a) Suspension of fundamental rights guaranteed by article 19.
b) Suspension of fundamental rights other than Articles 19, 20, and 21
c) Both of the above
d) None of the above

Show Answer

Answer. a) Suspension of fundamental rights guaranteed by article 19.

Article 359 deals with the Suspension of fundamental rights other than Articles 19, 20, and 21.

8. National emergency was not declared in which of the following year?
a) 1962
b) 1971
c) 1975
d) 1999

Show Answer

Answer. d) 1999

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